

5	22-01267792 Duarte vs. Siegel-Foigelman	Motion to Be Relieved as Counsel of Record The motion of attorneys David E. Outwater and Cathleen L. Mulligan from Outwater & Pinckes, LLP to be relieved as counsel of record for plaintiff Noel Duarte is CONTINUED to _____. California Rules of Court, Rule 3.1362, subdivision (d) requires that: “The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case.” Although the declaration in support of the motion states client was served with the moving papers by mail, the proof of service filed on 3/17/26 does not show moving papers were served on client. (ROA 614) Moving attorneys are to serve all moving papers in compliance with Rule 3.1362, subdivision (d) and file a proof of service no later than 5 court days prior to the continued hearing. Moving attorneys to give notice.
6	24-01441602 Hoang vs. EMPIRE HEALTH SYSTEMS, INC.	Motion for Order Authorizing Substituted Service Plaintiff Anh Duc Hoang’s Motion for Order Authorizing Substituted Service of Defendant Empire Health Systems, Inc. to California Secretary of State is GRANTED. Plaintiff moves for an order pursuant to Corporations Code section 1702 permitting Plaintiff to effectuate service of process on Defendant by serving the office of the California Secretary of State. Corporations Code section 1702, subdivision (a) provides, “If an agent for the purpose of service of process has resigned and has not been replaced or if the agent designated cannot with reasonable diligence be found at the address designated for personally delivering the process, or if no agent has been designated, and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20 or subdivision (a) of Section 415.30 of the Code of Civil Procedure or upon the corporation in the manner provided in subdivision (a), (b) or (c) of Section 416.10 or subdivision (a) of Section 416.20 of the Code of Civil Procedure, the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing such service. Service in this manner is deemed complete on the 10th day after delivery of the process to the Secretary of State.” (Corp. Code, § 1702, subd. (a) [emphasis added].) The term “reasonable diligence” denotes “a thorough, systematic investigation and inquiry conducted in good faith by the party or his

agent or attorney.” (*Watts v. Crawford* (1995) 10 Cal.4th 743, 749.) The basic test is whether the declaration shows plaintiff took “those steps which a reasonable person *who truly desired to give notice* would have taken under the circumstances.” (*Donel, Inc. v. Badalian* (1978) 87 Cal.App.3d 327, 333.)

Thus, before the court can permit service to be made on the Secretary of State, Plaintiff must show that the agent resigned and has not been replaced or cannot be found, *and* Defendant’s designated agent could not be served by hand or by mail and acknowledgment of receipt under Code of Civil Procedure, section 415.30, subdivision (a). (See Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 4:149 [“The court order must be based upon a factual showing (by declaration) that process cannot be served with reasonable diligence upon (i) the corporation’s designated agent (i.e., because the agent resigned and was not replaced or cannot be found at the designated address or if no agent was appointed); *and* (ii) the corporation by any other authorized method].)

Here, Plaintiff’s counsel declares that based on the Secretary of State website as of December 2, 2024, Defendant’s designated agent for service of process was Ta Siu whose address was listed 9550 Flair Drive, Suite 100, El Monte, CA 91731. (Pham Decl., ¶ 4a, Ex. 1.) Plaintiff’s process server attempted service at the El Monte address on December 12, 2024, but found it vacant. (Id., ¶ 4a, Ex. 2.)

On May 12, 2025, Plaintiff’s counsel reviewed the Secretary of State website and learned that Defendant had updated the addresses for its principal place of business to 820 N. Mountain Ave., Ste 103, Upland, CA 91786; its mailing address to 170 East College Street Covina, CA 91723; and Ta Siu’s address to 1928 W. 17th St., Santa Ana, CA 92706. (Pham Decl., ¶ 4b, Ex. 3.) Defendant’s updated Statement of Information listed Ta Siu as both the agent for service of process and Defendant’s Chief Executive Officer. (Id., Ex. 4.)

Plaintiff’s process server attempted service at Ta Siu’s Santa Ana address four times between May 15, 2025 and May 22, 2025. (Pham Decl., ¶ 4c, Exs. 5-7.) The company at that location was Santa Ana Beauty College. (Id., Ex. 5.) Each time, the door was closed and locked and no lights were on inside. (Id., ¶ 4c, Exs. 5, 6.) On May 23, 2025, the process server spoke with an office administrator who said she had never heard of Defendant or Ta Siu. (Id., Ex. 7.)

On May 23, 2025, Plaintiff’s process server tried to serve Defendant at its principal place of business at the Upland address. The receptionist at that location informed the process server that neither Ta Siu nor Defendant were registered to that suite, and the company occupying that location was Montana Affinity Clinic. (Pham Decl., ¶ 4d, Ex. 8.)

On September 26, 2025, Plaintiff’s counsel served Defendant by mail and acknowledgment of receipt; however, it has been over 20 days without a response from Defendant. (Pham Decl., ¶ 5, Ex. 9.)

		Plaintiff's counsel's declaration demonstrates that process cannot be served with reasonable diligence upon the Defendant's designated agent, who cannot be found. Nor can service be reasonably effectuated by any other allowable means. The motion is granted.
7	24-01382178 <i>Kim vs. Kkanbu Restaurant, Inc.</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Form Interrogatories 3) Motion to Compel Answers to Special Interrogatories 4) Motion to Compel Production 5) Motion to Deem Facts Admitted Defendant and Cross-complainant Ai Ran Yang's motions to compel responses to (1) Form Interrogatories – General, Set One, (2) Form Interrogatories – Employment, Set One, (3) Special Interrogatories, Set One, (4) Request for Production, Set One, and (5) deem the truth of any matters in Request for Admissions, Set One, admitted and for sanctions against Cross-defendant Hyun Mi Ki are DENIED as MOOT. On 11/14/25, Defendant and Cross-complainant Ai Ran Yang filed the instant discovery motions regarding discovery propounded on Cross-defendant Hyun Mi Kim. On 8/25/25, however, Defendants and Cross-complainants Kkanbu Restaurant, Inc. and Ai Ran Yang filed a request for entry of default against Cross-defendant Hyun Mi Kim on the cross-complaint filed 4/23/25. (ROA 41.) Default was entered on 8/25/25. “The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered.” (Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc. (1984) 155 Cal.App.3d 381, 385 [citations omitted].) “A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action” (Id. at p. 385-386 [citation omitted].) As default has been entered against Cross-defendant Kim on the Cross-complaint, Cross-defendant Kim is “out of court” and Defendant and Cross-complainant Yang's discovery motions are therefore moot.
8	25-01472504 <i>Maleki vs. Schumacher & Maleki, LLC</i>	Order to Show Cause re: Preliminary Injunction Plaintiff Majed Maleki's Motion for Preliminary Injunction is DENIED. Defendant's objections to evidence (ROAs 139 and 140) are overruled. Plaintiff seeks an injunction prohibiting and limiting Defendant Jenna Schumacher's involvement in the parties' joint interior design business, Defendant Schumacher & Maleki, LLC (“the LLC”) including destroying assets, soliciting clients from the LLC, and generally